

PROJECT MANAGEMENT AGREEMENT

Between 1402 Celsius Ltd and [Client]

This Agreement is made this _____ day of _____, 20__

BETWEEN

1402 CELSIUS LTD
20-22 Wenlock Road
N1 7GU, London, United Kingdom
Company Registration No: 12475013
VAT No: GB 343 1702 32
(hereinafter referred to as the "Service Provider")

AND

[CLIENT NAME: _____]
Address: _____
City, Postal Code, Country: _____
(hereinafter referred to as the "Client")

RECITALS

- A. The Client wishes to explore and execute a real estate investment in [Region], Italy, and requires professional project coordination and representation services to support this endeavour.
- B. The Service Provider acts as a Project Coordinator and Client Representative, responsible for managing and coordinating all third-party professionals, ensuring their deliverables are completed on time and according to the project plan agreed with the Client (the "Project Owner").
- C. The Service Provider, through its authorised representatives and associates, possesses the necessary qualifications, experience, and local expertise to coordinate, manage, and oversee all professional services required for the project.
- D. The Service Provider undertakes responsibility for the performance management of all engaged professionals, while the actual technical services are performed by qualified third-party specialists.
- E. The parties wish to enter into this professional services agreement under the terms and conditions set forth below.

ARTICLE 1 – SCOPE OF SERVICES

1.0 Nature of Services: The Service Provider acts exclusively as a Project Coordinator and Client Representative, responsible for coordinating and managing all third-party professionals engaged in the project; representing the Client's interests in all project-related matters; ensuring timely delivery of all professional services according to the agreed project plan; monitoring and reporting on the performance of all engaged professionals; and acting as the single point of contact between the Client and all project stakeholders. The Service Provider does not directly perform technical services (including but not limited to architectural, engineering, construction, legal, or financial advisory). Such services shall be performed exclusively by qualified professionals engaged for the Project, while the Service Provider ensures that these services are delivered in accordance with the Client's requirements and agreed timelines.

1.1 Confidentiality and Data Protection: The Service Provider agrees to maintain strict confidentiality, comply with GDPR, and use confidential information only for the Client's interests.

1.2 Entity Setup and Legal Framework – Coordination Services: Coordination of legal professionals for establishing an Italian SRL or appropriate legal entity; management of SPID and digital signatures; oversight of local registrations, tax codes, and compliance; scheduling and coordination with Italian notaries; and ensuring all legal documentation is properly prepared and delivered on schedule.

1.3 Property Assessment and Strategic Planning – Representation Services: Representing the Client in property viewings and negotiations; coordinating surveyors and valuation experts; managing market analysis; overseeing development of sustainable business models; and ensuring timely and quality deliverables.

1.4 Grant and Financial Application Management – Coordination & Accountability: Managing accredited grant consultants; overseeing submission of application documents; coordinating business plan development; representing the Client in meetings with banks; ensuring deadlines are met; and monitoring progress.

1.5 Project Implementation Oversight – Management Responsibility: Selection and performance management of technical teams, architects, engineers, and contractors; accountability for delivery according to timeline and budget; permit applications; and regular progress reports.

1.6 Construction and Renovation Coordination – Site Management: On-site representation; managing contractors; resolving technical issues; overseeing milestones and safety compliance; and reporting to the Client.

1.7 Project Completion and Handover – Final Delivery: Ensuring completion of deliverables; coordinating certificates; final inspections; documentation delivery; and smooth handover.

ARTICLE 2 – DURATION

2.1 Commencement: This Agreement shall commence on the date of execution by both parties.

2.2 Term: The Agreement shall remain in effect until the completion of the financed project, defined as: (a) official approval and disbursement of grant funding; or (b) completion of the property purchase and associated works; or (c) otherwise agreed in writing.

2.3 Termination Notice: Any extension or early termination must be agreed in writing with thirty (30) days' prior notice.

ARTICLE 3 – COMPENSATION AND PAYMENT TERMS

3.1 Fee Structure: (A) Initial Retainer Fee – €5,000 due upon signing this Agreement. (B) Second Payment – €5,000 due upon signing of the preliminary purchase contract. (C) Performance Bonus – 7.5% of any savings achieved on the chosen property's asking price, payable upon signing of the final deed. (D) Success-Based Commission – 2.5% of the total project value submitted for financing, payable in stages as follows: (i) 1% upon grant approval and/or bank co-financing (less €5,000 if already paid); (ii) 1% at commencement of construction/renovation works; (iii) 0.5% upon issuance of Certificate of Habitability (SCA).

3.2 Payment Terms: All payments are due within five (5) days of invoice date. Invoices in EUR. VAT at applicable rate. Late payments incur interest at 8% above Bank of England base rate. Services may be suspended if overdue by more than 15 days.

ARTICLE 4 – MUTUAL OBLIGATIONS

4.1 Service Provider's Obligations: The Service Provider shall take responsibility for managing all third-party services, ensuring performance, providing updates at least bi-weekly, and granting the Client free access to its project management platform Apulink.com for monitoring deliverables.

4.2 Client's Obligations: The Client shall provide all required documentation, make timely decisions, fulfil payments, cooperate fully, provide Power of Attorney where necessary, and maintain adequate funds.

ARTICLE 5 – INTELLECTUAL PROPERTY

5.1 Ownership: All project documentation, plans, and materials created specifically for the Client shall become the Client's property upon full payment of fees.

5.2 Service Provider's Materials: The Service Provider retains rights to proprietary methods, templates, and know-how.

ARTICLE 6 – LIABILITY AND INDEMNIFICATION

6.1 Limitation of Liability: The Service Provider shall not be liable for technical errors, malpractice of third parties, or delays beyond its control. Total liability shall not exceed fees paid, except in cases of gross negligence or wilful misconduct.

6.2 Performance Accountability: The Service Provider accepts accountability for proper selection and management of professionals and corrective actions where necessary.

6.3 Indemnification: Each party indemnifies the other against claims arising from their own negligent acts or omissions.

6.4 Force Majeure: Neither party shall be liable for delays or failures due to circumstances beyond reasonable control, including acts of God, war, pandemic, or changes in law.

ARTICLE 7 – TERMINATION

7.1 Termination Events: This Agreement may be terminated: (a) by mutual consent; (b) by either party with 30 days' written notice; (c) immediately for material breach if not cured within 14 days; or (d) upon completion of services.

7.2 Consequences of Termination: Upon termination, the Service Provider shall be paid for all services rendered, confidential information returned, and ongoing obligations shall survive termination.

EXECUTION

FOR THE SERVICE PROVIDER:

1402 CELSIUS LTD

By: _____

Title: _____

Date: _____

FOR THE CLIENT:

Name: _____

Title/Capacity: _____

Date: _____

SCHEDULE A – PROJECT DETAILS

Property Location/Region: _____

Estimated Project Value: _____

Target Completion Date: _____

Specific Grant Programs: _____

SCHEDULE B – CONTACT INFORMATION

Service Provider's Project Manager:

Name: _____

Email: _____

Phone/WhatsApp: +39 351 400 1402

Client's Primary Contact:

Name: _____

Email: _____

Phone: _____

SCHEDULE C – BANKING DETAILS

Bank Name: _____

Account Name: 1402 Celsius Ltd

IBAN: _____

SWIFT/BIC: _____